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FIRST AMENDMENT TO THE MUTUAL CONFIDENTIALITY AGREEMENT
MONSTER ENERGY LIMITED AND COCA-COLA BEVERAGES SOUTH AFRICA (PTY) LIMITED

THIS FIRST AMENDMENT TO THE MUTUAL CONFIDENTIALITY AGREEMENT (the "**Amendment**") is entered into as of Nov 3, 2023 and is effective as of the date of this Amendment, ("**Amendment Date**"), by and between:

(1) **MONSTER ENERGY LIMITED**, a company incorporated and registered in the Republic of Ireland with company registration number IE462494 and whose registered office is 6th Floor, South Bank House, Barrow Street, Dublin 4, D04TR29, Republic of Ireland ("**MEL**"); and

(2) **COCA-COLA BEVERAGES SOUTH AFRICA (PTY) LIMITED**, a company registered in South Africa with company registration number 2015/027638/07 and whose registered office is at 15 Axle Drive, Clayville Industrial, Olifantsfontein, 1666, South Africa ("**CCBSA**").

WHEREAS:

a) MEL and CCBSA entered into a mutual confidentiality agreement with an effective date of 19 May 2023 (the "**Agreement**");

b) MEL and CCBSA desire to amend the Agreement to provide for an amendment to paragraph 2 of the Agreement and a replacement of section 1(b) of the Agreement; and

c) unless otherwise defined herein, capitalized words and phrases in this Amendment shall have the meaning prescribed in the Agreement.

NOW, THEREFORE, in consideration of the mutual covenants herein contained and for other valuable consideration, the parties agree to the following amendments to the Agreement:

1. The Agreement shall be amended as set out in this Amendment with effect on and from the Amendment Date.

2. By this Amendment, MEL and CCBSA hereby agree to delete the definition of the term "Purpose" in the second paragraph of the Agreement in its entirety and replace it with the following:

   "CCBSA and MEL shall engage in discussions relating to the South African sugar landscape, CCBSA's supplier base, general costs and the overall increase to sugar pricing in South Africa in order for MEL to understand the impact of the same on the MEL pricing model (the "**Purpose**")."

3. By this Amendment, MEL and CCBSA hereby agree to delete section 1(b) of the Agreement in its entirety and replace it with the following:

   "(b) sales information, customer lists, customer requirements, supplier information and historical product, packaging and ingredient price information,"

4. Except as otherwise set forth herein, all of the terms and conditions of the Agreement are hereby ratified in full.

5. Each party agrees to sign this Amendment by electronic signature (whatever form the electronic signature takes) and that this method of signature is as conclusive of the party's intention to be bound by this Amendment as if signed by each party's manuscript signature. This Amendment may be executed in any number of counterparts, each of which when executed shall constitute a duplicate original, but all the counterparts shall together constitute the one agreement. Transmission of an executed counterpart of this agreement (but for the avoidance of doubt not just a signature page) by (a) fax or (b) email (in PDF, JPEG or other agreed format) shall take effect as delivery of an executed counterpart of this agreement. At such time as each of the parties has a facsimile or other such electronic means copy of this Amendment, and/or counterparts thereof, containing the signatures of all of the parties, this Amendment shall be treated as having been fully executed and delivered for all

purposes. No counterpart shall be effective until each party has executed at least one counterpart.

6. This Amendment and any dispute or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by, and construed in accordance with, the laws of England and Wales.

IN WITNESS WHEREOF, the undersigned have executed this Amendment and this Amendment is effective as of the dates first set out above:

Monster Energy Limited ("MEL")

By: _____

Name: Kate O'Donoghue

Date: Nov 3, 2023

Coca-Cola Beverages South Africa (Pty) Ltd ("CCBSA")

By: DocuSigned by: _____ 99FC43635CC4451...

Name: Michael Wilson

Date: 11/3/2023 | 8:27 AM SAST